

Meeting Name:	Licensing Sub-Committee
Date:	29 January 2026
Report title:	Licensing Act 2003: Flavr Street Food & Bar, Arch 37, America Street, London SE1 0NJ
Ward(s) or groups affected:	Borough and Bankside
Classification:	Open
Reason for lateness (if applicable):	Not applicable
From:	Strategic Director of Environment, Sustainability and Leisure

RECOMMENDATION

1. That the licensing sub-committee considers an application made by America Street LTD for a premises licence to be granted under the Licensing Act 2003 in respect of the premises known as Flavr Street Food & Bar, Arch 37, America Street, London SE1 0NJ.
2. Notes:
 - a) This application is for a premises licence and has been submitted under Section 17 of the Licensing Act 2003. The application is subject to representations submitted by a responsible authority and by 'other persons', and therefore referred to the licensing sub-committee for determination. Eighteen representations have been submitted objecting to the application.
 - b) Paragraphs 8 to 12 of this report provide a summary of the application. A copy of the application is attached to this report as appendix A.
 - c) Paragraphs 14 to 26 of this report deal with the representations submitted in respect of the application. The representations are attached to this report as appendices B & C.
 - d) Conditions proposed in the application, and agreed to through a conciliatory process, are attached to this report as appendix D.
 - e) A map showing the location of the premises is attached to this report as Appendix F.

- f) A copy of the Council's approved procedure for hearings of the sub-committee in relation to an application made under the Licensing Act 2003, along with a copy of the hearing regulations, has been circulated to all parties to the meeting.

BACKGROUND INFORMATION

The Licensing Act 2003

3. The Licensing Act 2003 provides a licensing regime for:
 - The sale of and supply of alcohol
 - The provision of regulated entertainment
 - The provision of late-night refreshment.
4. Within Southwark, the licensing responsibility is wholly administered by this council.
5. The Act requires the licensing authority to carry out its functions under the Act with a view to promoting the four stated licensing objectives. These are:
 - The prevention of crime and disorder
 - The promotion of public safety
 - The prevention of nuisance
 - The protection of children from harm.
6. In carrying out its licensing functions, a licensing authority must also have regard to:
 - The Act itself
 - The guidance to the act issued under Section 182 of the Act
 - Secondary regulations issued under the Act
 - The licensing authority's own statement of licensing policy
 - The application, including the operating schedule submitted as part of the application
 - Relevant representations.
7. The premises licence application process involves the provision of all relevant information required under the Act to the licensing authority with copies provided by the applicant to the relevant responsible bodies under the Act. The application must also be advertised at the premises and in the local press. The responsible authorities and other persons within the local community may make representations on any part of the application where relevant to the four licensing objectives.

KEY ISSUES FOR CONSIDERATION

The premises licence application

8. On 15 November 2025 America Street LTD applied to this council for a premises licence to be granted under the Licensing Act 2003 in respect of the premises known as Flavr Street Food & Bar, Arch 37, America Street, London, SE1 0NJ.
9. The activities and hours applied for are summarised as follows:
 - **Recorded music and anything similar to live or recorded music:**
 - Monday to Wednesday: 16:00 to 23:00
 - Thursday and Friday: 16:00 to 01:00
 - Saturday: 12:00 to 01:00
 - Sunday: 12:00 to 23:00
 - **Late night refreshment:**
 - Thursday to Saturday: 23:00 to 01:00
 - **The sale of alcohol to be consumed on the premises:**
 - Sunday to Wednesday: 11:00 to 23:00
 - Thursday to Saturday: 11:00 to 01:00
 - **The proposed opening hours of the premises are:**
 - Sunday to Wednesday: 11:00 to 23:00
 - Thursday to Saturday: 11:00 to 01:00.
 - **N.B. – After considering the representations submitted, the applicant has amended the application so that all licensable activities, and the premises closing times, finish at 23:00 hours on each day of the week.**
10. The premises are described in the application as follows (verbatim):

“The premises is a food hall and bar situated within one of the railway arches on America Street. The immediate area is predominantly commercial, with little to no residential property nearby, which significantly reduces the potential for noise or public nuisance. The venue is located within an established hospitality zone and forms part of the wider Bankside development. Its close proximity to Flat Iron Square and the adjoining arches—many of which already accommodate restaurants and licensed premises—means the proposed operation will be compatible with the existing character and late-evening activity of the locality. In addition to supporting the local night-time economy, the food hall will also provide a high-quality and affordable lunchtime option for the large number of office workers based in the surrounding area, contributing positively to both daytime and evening use of the site.”

11. The premises licence application form provides the applicant's operating schedule. Parts F, H, I, J, K, L, and M of the operating schedule set out the proposed licensable activities, operating hours and operating control measures in full, with reference to the four licensing objectives as stated in the Licensing Act 2003. If a premises licence is issued in respect of the application, then the information provided in part M of the operating schedule will form the basis of conditions that will be attached to the licence.
12. The proposed designated premises supervisor (DPS) of the premises is Sergio Andres Trivino Cuellar.
13. A copy of the application is attached to this report as appendix A.

Representations from responsible authorities

14. Representations were submitted by this council's trading standards service, by the Metropolitan Police Service, and by this council's environmental protection team.
15. The trading standards' representation requested that the applicant include four additional conditions in the application to sufficiently address the protection of children from harm licensing objective.
16. The applicant agreed to the conditions suggested by the trading standards service, and the trading standards service therefore withdrew their representation.
17. The Metropolitan Police Service's representation noted that the premises are located in Bankside & Borough Strategic Cultural Area / District Town Centre, and is located in a cumulative impact area. The representation noted that the closing times applied for exceeded the closing times recommended in this council's statement of licensing policy for licensed premises where the premises are located.
18. The Metropolitan Police Service suggested further licence conditions to meet the licensing objectives and requested a reduction in operating hours. The applicant agreed to the conditions, and the reduced operating hours suggested by the Metropolitan Police Service, and the Metropolitan Police Service therefore withdrew their representation.
19. The environmental protection team's representation contends that, while the applicant states that there is "...little to no residential property nearby, which significantly reduces the potential for noise or public nuisance", this is factually incorrect, as there are numerous residential properties to the north of America Street that overlook the premises.
20. The environmental protection team do not think that licence conditions proposed in the application sufficiently address the prevention of public nuisance licensing objective, with particular concern about the possibility of DJ led events taking place at the premises until 01:00 hours.

21. The environmental protection team are also concerned that there are currently no details provided on how arch ventilation / food preparation cooking odours, and grease will be controlled to ensure there will be no public nuisance caused by the operation of kitchen facilities at the premises.
22. The environmental protection team objects to the application as they have concerns of public nuisance occurring at existing residential neighbours if this application is granted. The environmental protection team requests that the operating times proposed be amended to replicate existing planning restrictions, and that more site-specific details to address public nuisance are provided.
23. Copies of the representations submitted by responsible authorities, and related correspondence, are attached to this report as appendix B.

Representations from other persons

24. Seventeen representations have been submitted by local residents objecting to the grant of the application.
25. The representations variously contend that:
 - The premises are in a cumulative impact area, and the application could be refused on this basis alone.
 - The locale is, in fact, residential.
 - The proposed operation of the premises will lead to noise nuisance in the locale.
 - The proposed operation of the premises could lead to crime, nuisance, violence and anti-social behaviour in the locale.
 - The hours applied for are not congruent with the planning permission granted in respect of the premises.
 - Licensed premises in the area already cause disturbance which could be exacerbated by proposed operation of the premises.
 - Children of local residents could have their sleep disrupted by the proposed operation of the premises.
 - People congregating late at night are likely to be intoxicated, confrontational and intimidating.
 - The proposed closing times of the premises are too late.
 - Smokers congregating outside the premises could cause nuisance.
26. Various licence conditions have also been recommended by some of the other persons.

27. The representations submitted by other persons are to this report as Appendix C.

Conciliation

28. All of the representations have been sent to the applicant.
29. The applicant agreed to conditions proposed by this council's trading standards service, and by the Metropolitan Police Service. Both the trading standards service and Metropolitan Police Service consequently withdrew their representations.
30. The applicant provided a response to the other person's representations, and this response was sent to the other persons, and also to the environmental protection team.
31. At the time of writing this report the representations submitted by the environmental protection team, and by the other persons, remain outstanding and must therefore be considered by the licensing sub-committee.
32. The licensing sub-committee will be informed at hearing to determine this application should the environmental protection team, or any of the other persons, have withdrawn their representations.

Licence history of the premises

33. No previous licence under the Licensing Act 2003, or any prior licensing legislation, has been held regarding the premises.
34. Applications for premises licences seeking similar operating hours were applied for by another, completely separate, applicant on 22 July 2024 regarding Arches 36 - 39 America Street (thus including the Arch regarding this report).
35. The applications were subject to representations and were determined by the licensing sub-committee at a hearing on 07 November 2024. At the time of the applications no tenants had been proposed, and it was not known what type of business operation would take place in any of the arches.
36. The applications were refused with the licensing sub-committee noting in the decision that "the application lacked detail of premises type, appropriate and proportionate conditions, and did not adequately address cumulative impact and the residents' concerns..."
37. The licensing sub-committee further noted that: (1) the premises was described as "newly refurbished commercial unit(s)", but during the hearing it became clear that the units were essentially shells and would have infrastructure fitted out by tenants, and (2) the conditions were described as proportionate and adequate for the style and size of the operation. However, the style of the operation had yet to be determined as no tenant for the unit had been identified.

38. A copy of the notice of decision (NoD) regarding the hearing of 7 November 2024 is attached as Appendix E. This is included for informational purposes only, and it is reiterated that it relates to a decision regarding a completely unrelated applicant.
39. It should be noted that this application fully describes the intended operation of the premises and that the application has been made by the tenant of the premises.

Map

40. A map showing the location of the premises is attached to this report as Appendix F. Other licensed premises shown on the map are licensed as stated below:

Brix LDN, 16 Great Guildford Street, London SE1 0HS licensed for:

- Live music, recorded music, anything similar to live or recorded music, films and plays:
 - Monday to Saturday: 08:00 to 01:00
 - Sunday: 08:00 to 00:00
- The sale of alcohol to be consumed on and off the premises:
 - Monday to Saturday: 08:00 to 01:00
 - Sunday: 08:00 to 00:00
- Late night refreshment:
 - Monday to Saturday: 23:00 to 01:30
 - Sunday: 23:00 to 00:30

JSK News Ltd, 23 Great Guildford Street, London SE1 9EP licensed for:

- The sale of alcohol to be consumed off the premises:
 - Monday to Saturday: 07:00 to 20:00
 - Sunday: 09:00 to 17:00

Caravan Bankside, Unit 1, 30 Great Guildford Business Square, Great Guildford Street, London SE1 0HS licensed for:

- The sale of alcohol to be consumed on the premises:
 - Monday to Saturday: 08:00 to 00:00
 - Sunday: 08:00 to 23:00

- Late night refreshment:
 - Monday to Saturday: 23:00 to 00:30
 - Sunday: 23:00 to 23:30

Hank & Ginger, Basement & Ground Floor, 30 Great Guildford Street, London SE1 0HS licensed for:

- The sale of alcohol to be consumed on the premises:
 - Monday to Friday: 11:00 to 23:00
- Films:
 - Monday to Friday: 11:00 to 23:00

Miraflores Bar & Lounge, 60 Southwark Street, London SE1 1UN licensed for:

- Live music:
 - Monday to Wednesday: 19:00 to 00:00
 - Thursday: 19:00 to 01:00
 - Friday and Saturday: 19:00 to 03:00
 - Sunday: 18:00 to 00:00
 -
- Recorded music:
 - Sunday to Wednesday: 08:00 to 00:00
 - Thursday: 08:00 to 01:00
 - Friday and Saturday: 08:00 to 03:30
- Late night refreshment:
 - Sunday to Wednesday: 23:00 to 00:00
 - Thursday: 23:00 to 01:00
 - Friday and Saturday: 23:00 to 03:00
- The sale of alcohol to be consumed off the premises:
 - Sunday to Wednesday: 08:00 to 00:30
 - Thursday: 08:00 to 01:30
 - Friday and Saturday: 08:00 to 03:30
- The sale of alcohol to be consumed on the premises:
 - Sunday to Wednesday: 08:00 to 00:00
 - Thursday: 08:00 to 01:00
 - Friday and Saturday: 08:00 to 03:00

CBRE, 61 Southwark Street, London SE1 0HL licensed for:

- The sale of alcohol to be consumed on and off the premises:
 - Monday to Friday: 18:00 to 22:00

Lantana, 44 - 46 Ground Floor & Basement, Southwark Street, London SE1 1UN licensed for:

- The sale of alcohol to be consumed on and off the premises:
 - Monday to Sunday: 08:00 to 23:00

Chocolate Factory Production Ltd, 53-53a Southwark Street, London SE1 1RU licensed for:

- Live music, recorded music, performances of dance, plays, anything similar to live or recorded music:
 - Monday to Saturday: 12:00 to 01:00
 - Sunday: 12:00 to 00:00
- Late night refreshment:
 - Monday to Saturday: 23:00 to 01:00
 - Sunday: 23:00 to 00:00
- The sale of alcohol to be consumed on and off the premises:
 - Monday to Saturday: 12:00 to 01:00
 - Sunday: 12:00 to 00:00

Southwark Square Ltd, 55 Basement and Ground Floor, Southwark Street, London SE1 1RU licensed for:

- The sale of alcohol to be consumed on the premises:
 - Monday to Friday: 17:00 to 23:00
 - Saturday & Sunday: 12:00 to 23:00
- The sale of alcohol to be consumed on the premises:
 - Monday to Friday: 15:00 to 23:00
 - Saturday & Sunday: 12:00 to 23:00

ITSU, 65 The Harlequin Building , Southwark Street, London SE1 0HR licensed for:

- The sale of alcohol to be consumed on and off the premises:
 - Monday to Sunday: 10:00 to 22:00

Lady of the Grape Borough Market, 53 Basement And Ground Floor, Chocolate Factory , Southwark Street, London SE1 1RU
licensed for:

- Live music, recorded music and performances of dance:
 - Monday to Saturday: 11:00 to 01:00
 - Sunday: 11:00 to 00:00
- Late night refreshment:
 - Monday to Saturday: 23:00 to 01:00
 - Sunday: 23:00 to 00:00
- The sale of alcohol to be consumed on and off the premises:
 - Monday to Sunday: 11:00 to 01:00

Pyro Borough Limited, 53b Southwark Street, London SE1 1RU
licensed for:

- Live music, recorded music, performances of dance, films, plays and anything similar to live or recorded music:
 - Monday to Sunday: 11:00 to 23:00
- Late night refreshment:
 - Monday to Sunday: 23:00 to 00:00
- The sale of alcohol to be consumed on the premises:
 - Monday to Sunday: 12:00 to 23:45

The Bridge Central, 73-81 Southwark Bridge Road, London SE1 0NQ
licensed for:

- Recorded music
 - Monday to Saturday: 08:00 to 23:30
- Live music:
 - Thursday to Saturday: 17:00 to 23:00
- Late night refreshment:
 - Thursday to Saturday: 23:00 to 01:00
- The sale of alcohol to be consumed on the premises:
 - Monday to Saturday: 11:30 to 23:00

- Films:
 - Monday to Saturday: 14:00 to 22:30
- Entertainment similar to live or recorded music:
 - Thursday to Saturday: 19:00 to 23:00.

Southwark Council statement of licensing policy

41. Council assembly approved Southwark's statement of licensing policy 2021-2026 on 25 November 2020 and it came into effect on 1 January 2021.

42. Sections of the statement that are of relevance to the sub-committee's consideration are:

- Section 3 - Purpose and scope of the policy. This reinforces the four licensing objectives and the fundamental principles upon which this authority relies in determining licence applications.
- Section 5 – Determining applications for premises licenses and club premises certificates. This explains how the policy works and considers issues such as location; high standards of management; and the principles behind condition setting.
- Section 6 – Local cumulative impact policies. This sets out this authority's approach to cumulative impact and defines the boundaries of the current special policy areas and the classifications of premises to which they apply. To be read in conjunction with Appendix B to the policy.
- Section 7 – Hours of operation. This provides a guide to the hours of licensed operation that this Authority might consider appropriate by type of premises and (planning) area classification.
- Section 8 – The prevention of crime and disorder. This provides general guidance on the promotion of the first licensing objective.
- Section 9 – Public safety. This provides general guidance on the promotion of the second licensing objective.
- Section 10 – The prevention of nuisance. This provides general guidance on the promotion of the third licensing objective.
- Section 11 – The protection of children from harm. This provides general guidance on the promotion of the fourth licensing objective.

43. The purpose of Southwark's statement of licensing policy is to make clear to applicants what considerations will be taken into account when determining applications and should act as a guide to the sub-committee when considering the applications. However, the sub-committee must always consider each application on its own merits and allow exceptions to the normal policy where these are justified by the circumstances of the application.
44. Members should take into consideration both the Southwark statement of licensing policy and the Section 182 Guidance when making decisions. Links are below.

Southwark policy:

<https://www.southwark.gov.uk/sites/default/files/2024-09/Statement%20of%20Licensing%20Policy%202021-2026.pdf>

Section 182 Guidance:

[Revised guidance issued under section 182 of Licensing Act 2003 - GOV.UK](#)

Cumulative Impact Area (CIA)

45. Southwark's statement of licensing policy 2021 – 2026 (SoLP) came into effect on 1 January 2021.
46. According to sections 6 & 7 of this council's statement of licensing policy 2021 – 2026 (the SoLP), the premises fall within the Bankside & Borough strategic cultural area / district town centre and the Borough & Bankside cumulative impact area (CIA).
47. The following closing times are recommended in our SoLP in respect of various types of licensed premises located in the Bankside & Borough strategic cultural area / district town centre:
- Takeaway establishments offering late night refreshment:
 - Sunday to Thursday: 00:00 (midnight)
 - Friday and Saturday: 01:00
 - Restaurants and cafes:
 - Sunday to Thursday: 00:00
 - Friday and Saturday: 01:00
 - Public houses, wine bars, or other drinking establishments and bars in other types of premises:
 - Sunday to Thursday: 23:00
 - Friday and Saturday: 00:00.

General guidance

48. Members should take into consideration both the Southwark statement of licensing policy and the Section 182 Guidance when making decisions.
49. Members are required to have regard to the Home Office guidance in carrying out the functions of licensing authority. However, guidance does not cover every possible situation, so long as the guidance has been properly and carefully understood, members may depart from it if they have reason to do so. Full reasons must be given if this is the case.
50. Members should also consider the National Licensing Policy Framework for the hospitality and leisure sectors. The link for this is below:

[National Licensing Policy Framework for the hospitality and leisure sectors - GOV.UK](https://www.gov.uk/government/policies/national-licensing-policy-framework-for-the-hospitality-and-leisure-sectors)

Climate change implications

51. Following council assembly on 14 July 2021, the council is committed to considering the climate change implications of any decisions.
52. Climate change is not a legal factor in the consideration of a grant of a premises license under the current licensing objectives, however members can make enquiries and request an agreement from applicants to promote the reduction of the impact of climate change that may be caused by the operation of the premises.
53. Examples of such an agreement may be:
 - Not to use single use plastics, such as disposable plastic glasses, when selling alcohol at the premises.
 - Encourage patrons not to drive to venues by providing details of public transport on their webpages/tickets.
54. The council's climate change strategy is available at:

<https://www.southwark.gov.uk/sites/default/files/2024-12/Climate%20Change%20Strategy%20%28July%202021%29%20%287%29.pdf>

Community, equalities (including socio-economic) and health impacts

Community impact statement

55. Each application is required by law to be considered upon its own individual merits with all relevant matters taken into account.

Equalities (including socio-economic) impact statement

56. This report does not result in a policy decision and each application is required to be considered upon its own individual merits with all relevant matters taken into account. In considering the recommendations of this report, due regard must be given to the public sector equality duty set out in section 149 of the Equality Act 2010. This requires the council to consider all individuals when carrying out its functions.
57. Importantly, the council must have due regard to the need to eliminate discrimination, harassment, victimisation, or other prohibited conduct; advance equality of opportunity and foster good relations between people who have protected characteristics and those who do not. The relevant protected characteristics are age, disability, gender reassignment, pregnancy and maternity, race, religion or belief, sex, sexual orientation. The public sector equality duty also applies to marriage and civil partnership, but only in relation to the need to eliminate discrimination, harassment, victimisation, or other prohibited conduct.
58. The equalities impact statement for licensing decisions is contained within the Southwark statement of licensing Policy 2021 – 2026:

<https://www.southwark.gov.uk/sites/default/files/2024-09/Statement%20of%20Licensing%20Policy%202021-2026.pdf>

59. The equalities impact assessment is available at:

<https://moderngov.southwark.gov.uk/documents/s92016/Appendix%20F%20-%20Equalities%20Impact%20Assessment.pdf>

Health impact statement

60. Health impacts cannot be considered by law when making decisions under the Licensing Act 2003.

Resource implications

61. A fee of £100.00 has been paid by the applicant company in respect of this application being the statutory fee payable for premises within non-domestic rateable value A.

SUPPLEMENTARY ADVICE FROM OTHER OFFICERS

Assistant Chief Executive – Governance and Assurance

62. The sub-committee is asked to determine the application for a premises licence under Section 17 of the Licensing Act 2003.
63. The principles which sub-committee members must apply are set out below.

Principles for making the determination

64. The sub-committee is asked to determine the application for a premises licence under Section 17 of the Licensing Act 2003.
65. The principles which sub-committee members must apply are set out below.
66. The general principle is that applications for premises licence applications must be granted unless relevant representations are received. This is subject to the proviso that the applicant has complied with regulations in advertising and submitting the application.
67. Relevant representations are those which:
 - Are about the likely effect of the granting of the application on the promotion of the licensing objectives
 - Are made by an interested party or responsible authority
 - Have not been withdrawn
 - Are not, in the opinion of the relevant licensing authority, frivolous or vexatious.
68. If relevant representations are received then the sub-committee must have regard to them, in determining whether it is necessary for the promotion of the licensing objectives to:
 - To grant the licence subject to:
 - The conditions mentioned in section 18 (2)(a) modified to such extent as the licensing authority considers necessary for the promotion of the licensing objectives.
 - Any condition which must under section 19, 20 or 21 be included in the licence.
 - To exclude from the scope of the licence any of the licensable activities to which the application relates.
 - To refuse to specify a person in the licence as the premises supervisor.
 - To reject the application.

Conditions

69. The sub-committee's discretion is thus limited. It can only modify the conditions put forward by the applicant, or refuse the application, if it is necessary to do so. Conditions must be necessary and proportionate for the promotion of one of the four licensing objectives, and not for any other reason. Conditions must also be within the control of the licensee and should be worded in a way which is clear, certain, consistent and enforceable.

70. The four licensing objectives are:

- The prevention of crime and disorder
- Public safety
- The prevention of nuisance
- The protection of children from harm.

71. Members should note that each objective is of equal importance. There are no other licensing objectives, and the four objectives are paramount considerations at all times.

72. Conditions will not be necessary if they duplicate a statutory position. Conditions relating to night café and take away aspect of the license must relate to the night time operation of the premises and must not be used to impose conditions which could not be imposed on day time operators.

73. Members are also referred to the Home Office Revised Guidance issued under section 182 of the Licensing Act 2003 on conditions, specifically section 10.

Reasons

74. If the sub-committee determines that it is necessary to modify the conditions, or to refuse the application for a premises licence application, it must give reasons for its decision.

Hearing procedures

75. Subject to the licensing hearing regulations, the licensing committee may determine its own procedures. Key elements of the regulations are that:

- The hearing shall take the form of a discussion led by the authority. Cross examination shall not be permitted unless the authority considered that it is required for it to consider the representations.
- Members of the authority are free to ask any question of any party or other person appearing at the hearing.
- The committee must allow the parties an equal maximum period of time in which to exercise their rights to:
 - Address the authority
 - If given permission by the committee, question any other party.
 - In response to a point which the authority has given notice it will require clarification, give further information in support of their application.
- The committee shall disregard any information given by a party which is not relevant to the particular application before the committee and the licensing objectives.

- The hearing shall be in public, although the committee may exclude the public from all or part of a hearing where it considers that the public interest in doing so outweighs the public interest in the hearing, or that part of the hearing, taking place in private.
 - In considering any representations or notice made by a party the authority may take into account documentary or other information produced by a party in support of their application, representations or notice (as applicable) either before the hearing or, with the consent of all the other parties, at the hearing.
76. This matter relates to the determination of an application for a premises licence under Section 17 of the Licensing Act 2003. Regulation 26(1) (a) requires the sub-committee to make its determination at the conclusion of the hearing.

Council's multiple roles and the role of the licensing sub-committee

77. Sub-committee members will note that, in relation to this application, the council has multiple roles. Council officers from various departments have been asked to consider the application from the perspective of the council as authority responsible respectively for environmental health, trading standards, health and safety and as the planning authority.
78. Members should note that the licensing sub-committee is meeting on this occasion solely to perform the role of licensing authority. The sub-committee sits in quasi-judicial capacity, and must act impartially. It must offer a fair and unbiased hearing of the application. In this case, members should disregard the council's broader policy objectives and role as statutory authority in other contexts. Members must direct themselves to making a determination solely based upon the licensing law, guidance and the council's statement of licensing policy.
79. As a quasi-judicial body the licensing sub-committee is required to consider the application on its merits. The sub-committee must take into account only relevant factors, and ignore irrelevant factors. The decision must be based on evidence, that is to say material, which tends logically to show the existence or non-existence of relevant facts, or the likelihood or unlikelihood of the occurrence of some future event, the occurrence of which would be relevant. The licensing sub-committee must give fair consideration to the contentions of all persons entitled to make representations to them.
80. The licensing sub-committee is entitled to consider events outside of the premises if they are relevant, i.e. are properly attributable to the premises being open. The proprietors do not have to be personally responsible for the incidents for the same to be relevant. However, if such events are not properly attributable to the premises being open, then the evidence is not relevant and should be excluded. Guidance is that the licensing authority will primarily focus on the direct impact of the activities taking place at the licensed premises on members of the public, living, working or engaged in normal activity in the area concerned.

81. Members will be aware of the council's code of conduct which requires them to declare personal and prejudicial interests. The code applies to members when considering licensing applications. In addition, as a quasi-judicial body, members are required to avoid both actual bias, and the appearance of bias.
82. The sub-committee can only consider matters within the application that have been raised through representations from other persons and responsible authorities. Interested parties must live in the vicinity of the premises. This will be decided on a case to case basis.
83. Under the Human Rights Act 1998, the sub-committee needs to consider the balance between the rights of the applicant and those making representations to the application when making their decision. The sub-committee has a duty under section 17 Crime and Disorder Act 1998 when making its decision to do all it can to prevent crime and disorder in the borough.
84. Other persons, responsible authorities and the applicant have the right to appeal the decision of the sub-committee to the magistrates' court within a period of 21 days beginning with the day on which the applicant was notified by the licensing authority of the decision to be appealed against.

Guidance

85. Members are required to have regard to the Home Office guidance in carrying out the functions of licensing authority. However, guidance does not cover every possible situation, so long as the guidance has been properly and carefully understood, members may depart from it if they have reason to do so. Full reasons must be given if this is the case.

Strategic Director of Resources

86. The head of regulatory services has confirmed that the costs of this process over and above the application fee are borne by the service.

BACKGROUND DOCUMENTS

Background Papers	Held At	Contact
Licensing Act 2003	Southwark Licensing, C/O Regulatory Services 160 Tooley Street, London SE1 2QH	Esther Jones Tel: 020 7525 5748
Home Office Revised Guidance to the Act		
Secondary Regulations		
Southwark statement of licensing policy		
Case file		

APPENDICES

No.	Title
Appendix A	Copy of the application
Appendix B	Copies of the representation submitted by responsible authorities, and related correspondence
Appendix C	Copies of the representations submitted by other persons, and related correspondence
Appendix D	Conditions agreed to through conciliation
Appendix E	Copy of the notice of decision from 7 November 2024
Appendix F	Location map

AUDIT TRAIL

Lead Officer	Aled Richards, Strategic Director Environment, Sustainability and Leisure		
Report Author	Wesley McArthur, Principal Licensing Officer		
Version	Final		
Dated	15 January 2026		
Key Decision?	No		
CONSULTATION WITH OTHER OFFICERS / DIRECTORATES / CABINET MEMBER			
Officer Title		Comments Sought	Comments Included
Assistant Chief Executive - Governance and Assurance		Yes	Yes
Strategic Director of Resources		Yes	Yes
Cabinet Member		No	No
Date final report sent to Constitutional Team			15 January 2026